

judges should essentially restrict themselves to the words of the statute, is inadequate when interpreting ambiguous laws. Respecting Congress's work product not only makes it more likely that courts will interpret the law in a manner consistent with legislative purposes, but also, as Justice Stephen Breyer has written, that Congress will perceive the courts as productive partners rather than as meddlers substituting their own preferences for that of the legislative branch.⁵⁰ Indeed, as I will show, it is a bipartisan institutional perspective within Congress that courts should be attentive to the legislature's work product.

Congress and the Lawmaking Process

In providing a basic framework about the structure of government, the founders of our Constitution prescribed little about the internal workings of institutions themselves. They did, however, conceive of governance as a process of interaction among institutions at the federal level—legislative, executive, and judicial branches—and between the federal and state levels. James Madison and the other founders envisioned that each institution would have its own structure, purposes, and interests. The members of each branch would have the self-interest to resist the other branches' encroachments upon their prerogatives; yet, these institutions would in practice operate interdependently. And that system—characterized by the constructive tension arising both from the separation of powers as well as from institutional interdependence—would produce informed and deliberative outcomes. Although each institutional element would have its own structures, workways, interests, and purposes, together those parts would yield a balanced system. Senator Daniel Patrick Moynihan, a great mentor of mine, remarked on “the degree to which the founders of this nation thought about *government*.”¹ It was to the institutions of government, he observed, that they “looked to confine and to moderate” the political struggle that the founders feared.²

That the Constitution's first article, Article I, begins with a description of legislative power speaks to the importance that the framers attached to Congress in the constitutional scheme. Congress is the engine of statutes. The Constitution defines the powers of the legislative branch, the qualifications and terms of members, the circumstances in which legislators may be held to account for their speech and actions, the presentment of enacted bills to the President, and the requirements for overturning presidential vetoes. Madison asserted that the legislative institution should be designed so that legislators would "study...the comprehensive interests of their country,"³ as well as more immediate needs. *The Federalist* argued that the legislative branch needed to develop procedures so that its members would develop specialized competence and experience devising "a succession of well-chosen and well-connected measures."⁴ As envisioned, the legislative body should have a relatively stable composition, with its members acquiring thorough mastery of the public business over time.⁵ Madison cautioned:

It will be of little avail to the people that the laws are made by men of their own choice, if the laws be so voluminous that they cannot be read, or so incoherent that they cannot be understood; if they be repealed or revised before they are promulgated, or undergo such incessant changes that no man who knows what the law is to-day can guess what it will be to-morrow.⁶

But the Constitution hardly delineated how the lawmaking process was to be organized within each chamber. It limited instruction to a few clauses, such as: "The House of Representatives shall chuse their Speaker and other Officers";⁷ "The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided";⁸ "Each house may determine the Rules of

its Proceedings, punish its Members for disorderly Behaviour, and, with the Concurrence of two-thirds, expel a Member";⁹ "Each house shall keep a Journal of its Proceedings";¹⁰ "Neither house, during the Session of Congress, shall without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting";¹¹ "All Bills for raising Revenue shall originate in the House of Representatives";¹² "They [Senators and Representatives] shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of the respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall be questioned in any other Place."¹³

Beyond these words, it was up to succeeding Congresses to determine their lawmaking processes. The framers who lived through the frailties of the Articles of Confederation thought that through the institutional learning that would come with time, the branches could best craft the procedures which would enable effective governance. As Gouverneur Morris of New York wrote about the Constitution: "Nothing human can be perfect.... Surrounded by difficulties, we did the best we could; leaving it with those who should come after us to take counsel from experience...."¹⁴ And, in thinking about the first Congresses, which would create those initial processes, the framers might very well have felt that the task was manageable because the legislature's universe was small and thus more conducive to deliberation—a mere sixty-five members in the House and twenty-six in the Senate in the first Congress.¹⁵

Since the early nineteenth century, congressional committees have been central to lawmaking. Without committees, Congress could not function. By the mid-1820s, each legislative chamber had established standing committees that could expect that bills within their substantive jurisdiction would be referred to them.¹⁶ In 1885,

a young scholar, Woodrow Wilson, wrote: "Congress in session is Congress on public exhibition, whilst Congress in its committee rooms is Congress at work."¹⁷ Richard F. Fenno, Jr., a modern observer, commented that members seek committee assignments that fit with their policy interests and constituent concerns.¹⁸ The committee system can channel the pursuit of the individual interest of legislators to the good of Congress itself. Political scientist and Congressman David Price observed: "The committee system . . . accommodates the aspirations of disparate members but also represents a corrective of sorts to congressional individualism—a means of bringing expertise and attention to bear on the legislature's task in a more concerted fashion than the free enterprise of individual members could accomplish."¹⁹

Congressional staffs, on committees or in the personal offices of legislators, assist members in their legislative work in every facet of activity.²⁰ Today there are some 130 standing committees and subcommittees of various kinds in the House and 98 in the Senate.²¹ Some committees are authorizing committees, charged with making substantive policy as well as recommending spending levels to fund programs in their jurisdiction. Appropriations committees, responsible for determining how much money will be allocated to those programs and providing directions and restrictions as to how it is spent, can very much affect policy through the power of the purse. As part of the lawmaking function, committees examine how laws are being implemented through their oversight of the executive branch (and, to a lesser degree, oversight of the administration of the judicial branch). Because so many issues encompass cross-cutting areas of concern, committee jurisdictional categories can make lawmaking difficult. Hence, with greater frequency, especially in the House of Representatives, alternative arrangements assist or even supplant existing committee processes—for example, multi-committee

arrangements, task forces, leadership-organized panels, outside blue-ribbon commissions, and "high level 'summit' conferences between legislative leaders and the executive branch."²² From time to time, in the effort to strengthen its institutional capacity to perform its role as a coequal branch of government,²³ Congress will examine and make changes in its operations; one such effort I recall first-hand, having testified before a joint committee on the organization of Congress.²⁴

Congressional decisionmaking is the product of multiple decision points; it is the product of both centrifugal and centripetal forces. The latter is characterized by the decentralization of the committee system, and the former by efforts towards centralization, leadership at the top, and party discipline. Judge Coffin, a former legislator, once noted: "What complicates matters is that both movements coexist today, something like the various shiftings of the tectonic plates underlying the continents."²⁵ Many factors account for ambiguous or vague legislation: the difficulty of foreseeing all problems; the often inherent imprecisions of language itself; the legislature's decision to identify an issue generally and then to delegate the issue to the executive branch for resolution; and the nature of coalition politics which, in cobbling together the necessary majority, may yield legislation that is deliberately vague and ambiguous. Congressional organization—with its many decision points—can frustrate coherent decisionmaking, producing muddy statutory language. And political polarization, partisanship, and gridlock further complicate deliberation and the task of passing laws that are plainly understood.²⁶

Each chamber has its own rules of procedure for referring legislation to committees and calling up measures for floor consideration. The House's rules and procedures are far more extensive than the Senate's. The Senate, owing to its smaller membership, is generally

more flexible than the House in relaxing standing rules in order to accommodate the interests of individual Senators.²⁷ Drawing upon the invaluable compilation of vital congressional statistics produced by political scientists Norman J. Ornstein, Thomas E. Mann, Michael J. Malbin, and Andrew Rugg,²⁸ I offer this snapshot of the 111th Congress (2009–2010) and 112th Congress (2011–2012) to give a sense of the congressional institution. In the 111th Congress, 383 public bills were enacted, with a total of 7,617 pages, averaging 19.89 pages per statute.²⁹ In the House of Representatives, 6,677 bills were introduced (including joint resolutions), and 861 passed, with a .129 ratio of bills passed to bills introduced.³⁰ In the Senate, 4,101 bills were introduced and 176 bills passed, with a ratio of .043 bills passed to bills introduced.³¹ Additionally, the Senate held 2,374 committee and subcommittee hearings.³² In the 112th Congress, with 2012 being an election year and members spending less time in Washington, D.C., and more on the campaign trail, 283 public bills were enacted, with a total of 4,415 pages, averaging 15.60 pages per statute.³³ In the House of Representatives, 6,845 bills were introduced (including joint resolutions), and 561 passed, with a .082 ratio of bills passed to bills introduced.³⁴ In the Senate, 3,767 bills were introduced and 364 bills passed, with a ratio of .097 bills passed to bills introduced.³⁵ In recent decades, Congress has more frequently enacted legislation through large omnibus bills or resolutions, packing together a wide range of disparate issues.³⁶ The omnibus mechanism is a departure from the traditional approach of handling individual pieces of legislation.³⁷ In part, Congress uses omnibus bills to facilitate passage of overdue measures.³⁸ For example, in 2009, 2010, 2011, and 2014, Congress packaged appropriations bills into a single omnibus bill, reducing opportunities for further delay as opposed to considering each bill individually. Because it is generally subject to an up-and-down vote, the massive omnibus bill

masks differences over contentious measures included in the legislation that might not have passed if considered individually as stand-alone bills.³⁹

Congressional life is marked by incredible pressure—such as the pressures of the permanent campaign for reelection,⁴⁰ raising funds, balancing work in Washington and time in the district, balancing committee and floor work in an environment of increasing polarization, and balancing work and family responsibilities. It is also now more intense than in the past. Consider these statistics: In 1955, the number of recorded votes in the House was 147;⁴¹ in the 111th Congress (2009–2010), it was 991 and 664 respectively;⁴² and in the 112th Congress (2011–2012), it was 949 and 658 respectively.⁴³ In 1955, the number of recorded votes in the Senate was 88;⁴⁴ in the 111th Congress (2009–2010), it was 400 and 307, respectively;⁴⁵ and in the 112th Congress (2011–2012), it was 235 and 251, respectively.⁴⁶ At times, these votes take place in the dead of night, especially as the legislative session moves at a frenetic pace to recess or end of the session. In 1955–1956, Congress was in session 227 days; from 2007 to 2012, the average was 323 days.⁴⁷ In the House, the session day consisted of an average of 7.4 and 5.3 hours per day in the 111th and 112th Congress, respectively,⁴⁸ as compared to 4.1 hours per day in 1955–1956.⁴⁹ In the Senate, the session day consisted of 7.1 and 6.3 hours per day in the 111th and 112th Congress, respectively,⁵⁰ as compared to 6.1 hours per day in 1955–1956.⁵¹ In 1955–1956, the average total of committee assignments for members of the House was 3.0;⁵² in 2011–2012, it was 5.3 (1.7 standing committee assignments, 3.4 subcommittee assignments, and .20 other committee assignments).⁵³ Similarly, in the Senate, the average number of committee assignments was 7.9 in 1955–1956;⁵⁴ in 2011–2012, it was 12.9 (3.4 standing committee assignments, 8.6 subcommittee assignments, and .9 other committee assignments).⁵⁵

The key point is that the expanding, competing demands on legislators' time reduce opportunities for reflection and deliberation.⁵⁶ In that circumstance, beyond the work of their own committees of which legislators have direct knowledge, members operate in a system in which they rely on the work of colleagues on other committees.⁵⁷ Members of Congress accept the trustworthiness of statements made by their colleagues on other committees, especially those charged with managing the bill, about what the proposed legislation means. They cannot read every word of the bills they vote upon, and, indeed, reading every word is often not particularly instructive, to the degree bills contain language amending the United States Code or enacted statutes. For example, a legislator unfamiliar with the Hobby Protection Act in its codified or statutory version might have a hard time understanding this provision in a bill that the House adopted in July 2013:

The Hobby Protection Act (15 U.S.C. § 2101 *et seq.*) is amended—

(1) in section 2—

(A) in subsection (b), by inserting “, or the sale in commerce” after “distribution in commerce”;

(B) by redesignating subsection (d) as subsection (e) and inserting after subsection (c) the following:

“(d) Provision of Assistance or Support—It shall be a violation of subsection (a) or (b) for a person to provide substantial assistance or support to any manufacturer, importer, or seller if that person knows or should have known that the manufacturer, importer, or seller is engaged in any act or practice that violates subsection (a) or (b).”; and

(C) in subsection (e) (as so redesignated), by striking “and (b)” and inserting “(b), and (d)”;

(2) in section 3—

- (A) by striking “If any person” and inserting “(a) In General—If any person”;
- (B) by striking “or has an agent” and inserting “, has an agent, transacts business, or wherever venue is proper under section 1391 of title 28, United States Code”; and
- (C) by adding at the end the following:
 “(b) Trademark Violations—If the violation of section 2 (a) or (b) or a rule under section 2(c) also involves unauthorized use of registered trademarks belonging to a collectibles certification service, the owner of such trademarks shall have, in addition to the remedies provided in subsection (a), all rights provided under sections 34, 35, and 36 of the Trademark Act of 1946 (15 U.S.C. 1116, 1117, and 1118) for violations of such Act.”;....⁵⁸

Legislators and their staffs become educated about the bill by reading the materials produced by the committees and conference committees from which the proposed legislation emanates. These materials include, for example, committee reports, conference committee reports, and the joint statements of conferees who drafted the final bill.

Committee reports accompanying bills have long been important means of informing the whole chamber about proposed legislation; they are often the primary means by which staffs brief their principals before voting on a bill.⁵⁹ To facilitate deliberation, Congress was concerned from its earliest days that its proceedings be published, consistent with the constitutional requirement that a journal be kept.⁶⁰ With the advent of the committee system, reports of committee activity were delivered orally, but, in the House by the period 1830–1860, and in the Senate by 1900, it was

also commonplace for committee reports accompanying proposed legislation to be disseminated to the full chamber so that members could have a fuller appreciation of the bills on which they were called on to vote.⁶¹ Committee reports are generally circulated at least two calendar days before legislation is considered on the floor.⁶² Those reports provide members and their staffs with explanatory material about a bill's context, purposes, policy implications, and details, as well as information about who the committee supporters of a particular bill are and about possible minority views.⁶³ Conference committee reports represent the views of legislators from both chambers who are charged with reconciling bills that have passed both the House and the Senate and presenting them for final legislative consideration.⁶⁴ Members and their staffs will also hear from interest groups—including groups they find credible—and the executive branch about particular bills.⁶⁵ The system works because committee members and their staffs will lose influence with their colleagues as to future bills if they do not accurately represent the bills under consideration within their jurisdiction. Indeed, staffers would risk losing their jobs if they were to mislead legislators as to the details of legislation and accompanying reports.

Although any legislator can introduce a bill, it is the committee of jurisdiction that generally processes the proposed measure. In drafting bills, legislators look to multiple sources. In his memoir, the late Senator Edward M. Kennedy wrote that “[n]inety-five percent of the nitty-gritty work of drafting and even negotiating is now done by staff,” marking “an enormous shift of responsibility over the past forty or fifty years.”⁶⁶ Ninety-five percent, observed veteran journalist Robert Kaiser, the author of a rich saga of the passage of the Dodd-Frank Act,⁶⁷ “might underestimate staff members’ share of the work.”⁶⁸ Committees are aided by professional drafters in each chamber’s office of legislative counsel; these drafters are

trained in the nuances of statute writing.⁶⁹ Although legislators and their staffs are not required to consult with legislative counsel, doing so is prudent because a poorly drafted bill can lead to all manner of problems for agencies and courts charged with interpreting the statute. Typically, a committee staffer will contact the office for assistance in framing the bill so that it is technically correct. Those who work as legislative counsel think of the committees as clients.⁷⁰ Their role is not to offer views about the merits of a particular proposal; it is to determine how best to commit the bill's purposes to writing.⁷¹

Not all bills originate from the committees themselves. Some originate with the executive branch; others from interest groups, lobbyists, businesses, and state and local governments. These various interests may assist in drafting bills as well, but not necessarily with the care that each chamber's office of legislative counsel provides. Not all bills are drafted in the committee; bills can also be drafted, or at least substantially revised, on the floor and in conference committee.⁷² In the Senate, flexible procedures allow senators to draft bills in the course of debate. When bills are drafted on the floor, for example, the pressures of time mean that legislators do not generally check with the legislative counsel, and thus there is more likely to be problematic drafting language.⁷³ In conference committee, the pressure to come to closure and pass a bill can compromise technical precision.

A case study by law professors Victoria Nourse and Jane Schacter, focusing on the Senate Judiciary Committee, reveals that committee staffers are well aware that how they construct statutes will affect how agencies and courts interpret them. The staffers view their task not primarily as creating technically correct statutes, but as addressing political and policy issues through legislation.⁷⁴ The statute-making process, as legislators and staffs understand it, involves not

just the text of legislation, but also quite importantly legislative history—such as the reports and debates associated with the legislative text. As I described earlier, committee reports and conference committee reports accompanying bills can provide guidance to legislators in the enactment process.⁷⁵ Legislative history accompanying legislation can also be helpful by providing direction to agencies as to how to interpret and implement legislation. Scholars such as James Brudney,⁷⁶ Victoria Nourse,⁷⁷ Elizabeth Garrett,⁷⁸ Abbe R. Gluck, and Lisa Schultz Bressman⁷⁹ have more recently shown how Congress operates within a milieu of rules, norms, and practices—including importantly the applicability of legislative history. The degree to which these norms and practices shape both the drafting process and also legislative expectations about how laws should be understood is not commonly known within the judiciary—a matter to which I return later in this book when I discuss judicial interpretation of statutes.

What relevance does this whirlwind survey of Congress and lawmaking have for the interpretation of statutes? The point is a simple one. The laws of Congress are the product of often complex institutional processes, which engage legislators, staff, and other interests with stakes in the outcome. Having a basic understanding of legislative lawmaking can only better prepare judges to undertake their interpretive responsibilities. Additionally instructive to judges charged with construing statutes is how agency officials—also important participants in the interpretive enterprise—view signals from the Hill, including legislative materials. On to the next chapter about that very subject: agencies and Congress, and what courts can learn from them about the statutory interpretation enterprise.